

John Meredith, Council President
Jennie Robinson, Councilmember
Bill Kling, Councilmember
Frances Akridge, Councilmember
Devyn Keith, Councilmember



Tommy Battle, Mayor
John Hamilton, City Administrator
Trey Riley, City Attorney
Ken Benion, Clerk-Treasurer

CITY COUNCIL CHAMBERS

5:30 PM

Thursday, January 13, 2022

REGULAR MEETING OF THE CITY COUNCIL

CALL TO ORDER

1. INVOCATION

Offered by: Dr. Edward Soule, with Big Cove Cumberland Presbyterian

2. PLEDGE OF ALLEGIANCE

Led by: Councilmember Bill Kling

3. APPROVAL OF THE AGENDA

4. APPROVAL OF THE MINUTES OF PREVIOUS MEETING(S)

- a. [2022-0001](#) Minutes of Regular Meeting of the City Council held December 16, 2021.
(Minutes Received)

Attachments: [12-16-21.reg.pdf](#)

5. MAYOR: SPECIAL RECOGNITIONS

- a. [2022-0002](#) Recognition of Employee Incentive Awards.
- b. [2022-0003](#) Presentation of The Year of the Girl proclamation to mark the 50th anniversary of Girls, Inc. in Huntsville.
- c. [2022-0004](#) Presentation of Mentoring Month proclamation to Big Brothers and Big Sisters of North Alabama.
- d. [2022-0005](#) Recognition of the GIS Department for receiving a Special Achievement in GIS.
- e. [2022-0006](#) Proclamation to declare the month of January as Human Trafficking Awareness Month.

6. COUNCIL: SPECIAL RECOGNITIONS AND RESOLUTIONS

Resolutions for Approval and Presentation

- a. [2022-0007](#) Resolution honoring the life and service of esteemed community member Cynthia Masucci.
Resolution No. 22-01
UNANIMOUSLY ADOPTED BY MEMBER PRESENT

Sponsors: Kling

Attachments: [Masucci Resolution Final](#)

Resolutions for Approval Only

7. ANNOUNCEMENTS AND PRESENTATIONS

- a. [2022-0008](#) Presentation by United Way to update City Council on the use of City budget allocations and the work of United Way.

8. MATTERS WITH OUTSIDE LEGAL REPRESENTATIVE**9. PUBLIC HEARINGS TO BE HELD****10. PUBLIC HEARINGS TO BE SET**

- a. [2022-0009](#) Resolution to declare a public nuisance located at 3910 Birch Ave SW, Huntsville, AL and to set the date for when objections will be heard (01/27/2022).
WITHDRAWN

Sponsors: Community Development

Attachments: [Birch Ave \(Junk\) DECL OF PUBLIC NUISANCE.docx](#)

- b. [2022-0010](#) Resolution to declare a public nuisance located at 3607 Grote St SW, Huntsville, AL and to set the date for when objections will be heard (01/27/2022).
WITHDRAWN

Sponsors: Community Development

Attachments: [3607 Grote St SW \(Junk\) DECL PUBLIC NUISANCE 01132022.](#)

- c. [2022-0011](#) Resolution to declare a public nuisance located at 2111 Hill St NW, Huntsville, AL and to set the date for when objections will be heard (01/27/2022).
Resolution No. 22-04
UNANIMOUSLY ADOPTED BY MEMBER PRESENT

Sponsors: Community Development

Attachments: [2111 Hill St \(Junk\) Decl of Public Nuisance.docx](#)

- d. [2022-0012](#) Resolution to set a public hearing on the zoning of 1.24 acres of land lying on the west side of Mohawk Road and north of Olmstead Road to Residence 1-A District; and the introduction of an Ordinance pertaining to the same. (Set February 24, 2022 Regular Council Meeting)
Resolution No. 22-05 - UNANIMOUSLY ADOPTED BY MEMBER PRESENT
Ordinance No. 22-06 - INTRODUCED

Sponsors: Planning
Attachments: [Buford Zoning](#)
- e. [2022-0013](#) Resolution to set a public hearing on the zoning of 1.00 acre of land lying on the west side of County Line Road and south of Old Hwy 20 to Highway Business C-4 District; and the introduction of an Ordinance pertaining to the same. (Set February 24, 2022 Regular Council Meeting)
Resolution No. 22-07 - UNANIMOUSLY ADOPTED BY MEMBER PRESENT
Ordinance No. 22-08 - INTRODUCED

Sponsors: Planning
Attachments: [County Line Rd Zoning](#)
- f. [2022-0014](#) Resolution to set a Public Hearing on the vacation of a Right-of-Way along Powell Road, Sections 9, 10, 15 and 16; and, introduction of a Resolution consenting to, and introduction of an Ordinance vacating the Right-of-Way pertaining to the same. (Set February 24, 2022, Regular Council Meeting)(Mazda Toyota)
Resolution No. 22-09 - UNANIMOUSLY ADOPTED BY MEMBER PRESENT
Resolution No. 22-10 - INTRODUCED
Ordinance No. 22-11 - INTRODUCED

Sponsors: Planning
Attachments: [Powell Rd Res Setting Public Hearing.pdf](#)
[Powell Rd Res After Public Hearing.pdf](#)
[Powell Rd Ord Vacating ROW.pdf](#)

11. AGENDA RELATED PUBLIC COMMENTS

This portion of the meeting is reserved for persons wishing to address the Council on matters relating to the specific content of items on the meeting agenda. You may sign up to speak on the Public Comments Roster prior to the meeting. When called, approach the microphone and state your name, home address and city of residence. Each speaker may address the Council for three minutes. Speakers shall refrain from entering into a dialogue with Councilmembers or City staff and from making comments regarding the good name and character of any individual.

12. MAYOR COMMENTS

13. COUNCILMEMBER COMMENTS

Councilmember Devyn Keith

Councilmember Frances Akridge

Councilmember Jennie Robinson

Councilmember Bill Kling

Councilmember John Meredith

14. FINANCE COMMITTEE REPORT

- a. [2022-0015](#) Resolution authorizing expenditures for payment.
Resolution No. 22-12
UNANIMOUSLY ADOPTED BY MEMBER PRESENT

Sponsors: Finance Committee

Attachments: [Resolution - Expenditures](#)
[Expenditures - Complete](#)

15. BOARD APPOINTMENTS TO BE VOTED ON

- a. [2022-0016](#) Resolution appointing Richele Jordan-Davis to the Burritt Memorial Committee to fill a vacancy due to the resignation of Dr. Patricia Sims for the remainder of a vacant three (3) year term to expire October 1, 2024. (Nominated December 16, 2021, Regular Council Meeting)
Resolution No. 22-13
UNANIMOUSLY ADOPTED BY MEMBER PRESENT

Sponsors: Akridge

Attachments: [R. Jordan-Davis Appointment Burritt Memorial.docx](#)

16. BOARD APPOINTMENT NOMINATIONS

- a. [2022-0017](#) Nomination to appoint Jenna Rosano to the Huntsville Public Library Board to the seat previously held by Lee Jones for a four (4) year term to expire February 10, 2026.

Sponsors: Akridge

Attachments: [J.Rosano Appointment Public Library.docx](#)

- b. [2022-0018](#) Nomination to appoint Dr. Jan Harris to the Huntsville Public Library Board to the seat previously held by Lee Jones, for a four (4) year term to expire February 10, 2026.

Sponsors: Robinson and Kling

Attachments: [J. Harris Appointment Public Library.docx](#)

- c. [2022-0019](#) Nomination to appoint Walter Lee Ellenburg to the Air Pollution Control Board to fill a vacancy due to the resignation of Kenneth Arnold for the remainder of a vacant five (5) year term to expire April 11, 2026.
- Sponsors:** Akridge
- Attachments:** [W. Ellenburg Appointment Air Pollution.docx](#)
- d. [2022-0020](#) Nomination to appoint Dallas Terrell to the Housing Board of Adjustments and Appeals to fill a vacancy due to the resignation of Kenneth Arnold for the remainder of a vacant five (5) year term to expire August 22, 2025.
- Sponsors:** Akridge
- Attachments:** [D. Terrell Appointment Housing Board.docx](#)
- e. [2022-0021](#) Nomination to appoint Chris Hanks to the Housing Board of Adjustments and Appeals to fill a vacancy due to the resignation of Kenneth Arnold for the remainder of a vacant five (5) year term to expire August 22, 2025.
- Sponsors:** Robinson
- Attachments:** [C. Hanks Appointment Housing Board.docx](#)
- f. [2022-0022](#) Nomination to appoint Frank Levy to the Human Relations Commission, Place 3, to fill a vacancy due to the resignation of Paul Pradat for the remainder of a vacant four (4) year term to expire September 22, 2022.
- Sponsors:** Robinson
- Attachments:** [F. Levy Appointment HRC.docx](#)

17. **HUNTSVILLE UTILITIES ITEMS**

18. **LEGAL DEPARTMENT ITEMS/TRANSACTIONS**

Vacation of Easements

- a. [2022-0023](#) Ordinance authorizing the vacation of a Utility and Drainage Easement, Lots 2 & 3, Blevins Manor, 1323 Blevins Gap. (Mullen)
 Ordinance No. 22-14
 UNANIMOUSLY ADOPTED BY MEMBERS PRESENT
- Attachments:** [Mullen easement ordinance complete.pdf](#)
- b. [2022-0024](#) Ordinance authorizing the vacation of Utility and Drainage Easements, Lots 1-9, Johns Landing, 536 Johns Road. (Farm and Land Assets, LLC)
 Ordinance No. 22-15
 UNANIMOUSLY ADOPTED BY MEMBERS PRESENT
- Attachments:** [Farm and Land Assets Easement Vacation Ordinance.pdf](#)

- c. [2022-0025](#) Ordinance authorizing the vacation of a 25-foot Utility and Drainage Easement, Phase 8, Tract 1, North Huntsville Industrial Park. (Starbelt, LLC)
Ordinance No. 22-16
UNANIMOUSLY ADOPTED BY MEMBERS PRESENT
Attachments: [Starbelt Easement Vacation Ordinance.pdf](#)
- d. [2022-0026](#) Ordinance authorizing the vacation of a 10-foot Utility and Drainage Easement, Lots 4 & 5, Ware Park Subdivision, Phase 4, 2286 Zierdt Road. (Fuquay Commons)
Ordinance No. 22-17
UNANIMOUSLY ADOPTED BY MEMBERS PRESENT
Attachments: [Fuquay Commons Easement Vacation Ordinance.pdf](#)

Vacation of Rights-of-Way**Deeds of Acceptance****19. UNFINISHED BUSINESS ITEMS FOR ACTION**

- a. [2022-0027](#) Resolution No. 21-1273 in support of introducing state legislation allowing the use of automated traffic cameras for red-light enforcement in the City of Huntsville. (Postponed December 16, 2021, Regular Council Meeting)
Resolution No. 21-1273
POSTPONED UNTIL JANUARY 27, 2022, REGULAR COUNCIL MEETING
Sponsors: Akridge
Attachments: [Resolution Urging Local Delegation Red Light Safety Act 5.docx](#)
[Resolution urging local delgation red light safety.pdf](#)
- b. [2022-0028](#) Ordinance No. 21-1277, declaring certain equipment surplus and to be sold at public auction. (Introduced December 16, 2021, Regular Council Meeting)
Ordinance No. 21-1277
UNANIMOUSLY ADOPTED BY MEMBERS PRESENT
Sponsors: Fleet Department
Attachments: [Fowler Auction FEB 2022.docx](#)

- c. [2022-0029](#) Ordinance No. 21-1279, amending Article III, City Council, Section 2-69, Composition and Duties of the Finance Committee, of the Code of Ordinances of the City of Huntsville, Alabama. (Introduced December 16, 2021, Regular Council Meeting)
Ordinance No. 21-1279
POSTPONED UNTIL JANUARY 27, 2022, REGULAR COUNCIL MEETING

Sponsors: Akridge

Attachments: [Finance Committee Ordinance Section 2-69 Item C.docx](#)

20. NEW BUSINESS ITEMS FOR CONSIDERATION OR ACTION

These items will be approved in one motion unless any member of the Council wishes to remove an item for discussion. The reading of each item will be waived unless a Councilmember requests otherwise.

- a. [2022-0030](#) Resolution authorizing travel expenses.
Resolution No. 22-18
UNANIMOUSLY ADOPTED BY MEMBERS PRESENT

Sponsors: Finance

Attachments: [Travel Resolution](#)
- b. [2022-0031](#) Resolution authorizing the acceptance of donations.
Resolution No. 22-19
UNANIMOUSLY ADOPTED BY MEMBERS PRESENT

Sponsors: Finance

Attachments: [Donations](#)
- c. [2022-0032](#) Ordinance amending Budget Ordinance No. 21-867, by changing appropriated funding for various departments and funds.
Ordinance No. 22-20
UNANIMOUSLY ADOPTED BY MEMBERS PRESENT

Sponsors: Finance

Attachments: [Budget Amendment](#)
- d. [2022-0033](#) Resolution authorizing the Mayor to enter into agreements with the low bidders meeting specifications as outlined in the attached Summary of Bids for Acceptance.
Resolution No. 22-21
UNANIMOUSLY ADOPTED BY MEMBERS PRESENT

Sponsors: Finance

Attachments: [Resolution Procurement-Finala](#)

- e. [2022-0034](#) Resolution authorizing the Mayor to enter into an agreement between the City of Huntsville and OMI, Inc., for Subsurface Exploration for proposed Economic Development Site, Project No. 71-22-SP12.
Resolution No. 22-22
UNANIMOUSLY ADOPTED BY MEMBERS PRESENT

 Sponsors: Engineering

 Attachments: [Resolution OMI Proposed Economic Development Site](#)
 [OMI proposed Economic Development Site - Complete](#)
- f. [2022-0035](#) Resolution authorizing the Mayor to execute Modification No. 2 to the agreement between the City of Huntsville and RippleWorx, Inc., for SaaS Services Agreement.
Resolution No. 22-23
UNANIMOUSLY ADOPTED BY MEMBERS PRESENT

 Sponsors: Engineering

 Attachments: [Resolution Rippleworx Mod. #2 SaaS Agreement](#)
 [Rippleworx Mod. #2 SaaS Agreement - Complete](#)
 [Resolution Rippleworx Mod. #2 SaaS Agreement.pdf](#)
- g. [2022-0036](#) Resolution authorizing the Mayor to enter into an agreement between the City of Huntsville and the low bidder, Rogers Group, Inc., for Periodic Bid for Various Construction Projects-2021, Project No. 71-22-SP06.
Resolution No. 22-24
UNANIMOUSLY ADOPTED BY MEMBERS PRESENT

 Sponsors: Engineering

 Attachments: [Resolution Rogers Group Periodic Bid for Various Construction-2021](#)
 [Rogers Group Various Construction-2021 complete](#)
- h. [2022-0037](#) Resolution authorizing the Mayor to enter into an agreement between the City of Huntsville and Nola | VanPeurseem Architects, PC for architectural services for Aquatic Center Renovations Phase 4.
Resolution No. 22-25
UNANIMOUSLY ADOPTED BY MEMBERS PRESENT

 Sponsors: General Services

 Attachments: [NVP-Aquatics Center Reno Ph4 - COMPLETE](#)
 [NVP Res- Aquatic Center PH4](#)

- i. [2022-0038](#) Resolution authorizing the Mayor to enter into an agreement between the City of Huntsville and Nola | VanPeurse Architects, PC for architectural services for Fire Station 20.
Resolution No. 22-26
UNANIMOUSLY ADOPTED BY MEMBERS PRESENT

 Sponsors: General Services
 Attachments: [NVP-FIRE STATION 20-COMPLETE](#)
 [NVP Res- Fire Station 20](#)
- j. [2022-0039](#) Resolution authorizing the Mayor to enter into a License Agreement between the City of Huntsville and Mid-City South, LLC, for temporary amphitheater parking.
Resolution No. 22-27
UNANIMOUSLY ADOPTED BY MEMBERS PRESENT

 Sponsors: Urban Development
 Attachments: [MidCity South License Agreement.pdf](#)
- k. [2022-0040](#) Resolution authorizing the Mayor to enter into a License Agreement between the City of Huntsville and Mid-City Owner, LLC, for temporary amphitheater parking.
Resolution No. 22-28
UNANIMOUSLY ADOPTED BY MEMBERS PRESENT

 Sponsors: Urban Development
 Attachments: [Mid-City Owner License Agreement.pdf](#)
- l. [2022-0041](#) Resolution authorizing the Mayor to enter into a Purchase and Sale Agreement between the City of Huntsville and Airport Properties, LLC.
DELETED

 Sponsors: Urban Development
 Attachments: [Airport Properties Purchase Agreement Complete.pdf](#)
- m. [2022-0042](#) Resolution authorizing the Mayor to enter into a Memorandum of Understanding between the City of Huntsville and Flock Group Inc.
Resolution No. 22-30
UNANIMOUSLY ADOPTED BY MEMBERS PRESENT

 Sponsors: Police
 Attachments: [Complete File- Flock Group](#)
 [Resolution- Flock Group Inc.](#)

- n. [2022-0043](#) Resolution authorizing the Mayor to enter into a Services Agreement between the City of Huntsville and Alacourt.com
Resolution No. 22-31
UNANIMOUSLY ADOPTED BY MEMBERS PRESENT

 Sponsors: Police

 Attachments: [Complete File- Alacourt](#)
 [Resolution- Alacourt.com](#)
- o. [2022-0044](#) Resolution authorizing the Mayor to enter into an agreement between the City of Huntsville and Family Services Center, Inc. for new construction of a single-family house at 6102 Tuscaloosa Drive NW using HOME funds. (Community Development)
Resolution No. 22-32
UNANIMOUSLY ADOPTED BY MEMBERS PRESENT

 Sponsors: Community Development

 Attachments: [6102 Tuscaloosa - Contract FINAL](#)
 [6102 Tuscaloosa - Resolution Final](#)
- p. [2022-0045](#) Ordinance amending Budget Ordinance No. 21-867, by changing the authorized personnel strength in the department and fund.
Ordinance No. 22-33
UNANIMOUSLY ADOPTED BY MEMBERS PRESENT

 Sponsors: Human Resources

 Attachments: [Budget Ord No. 21-867- Authorized Strength 1-13-2022.docx](#)
- q. [2022-0046](#) Resolution to adjust the salaries of employees in certain positions in assigned departments.
Resolution No. 22-34
UNANIMOUSLY ADOPTED BY MEMBERS PRESENT

 Sponsors: Human Resources

 Attachments: [Resolution - Certain Department Positions 1-2022.docx](#)
- r. [2022-0047](#) Resolution authorizing the Mayor to enter into a Special Employee Agreement between the City of Huntsville and George Daigle.
Resolution No. 22-35
UNANIMOUSLY ADOPTED BY MEMBERS PRESENT

 Sponsors: Fire and Rescue

 Attachments: [George Daigle 2022 Resolution.docx](#)
 [George Daigle 2022 Contract.docx](#)

21. NEW BUSINESS ITEMS FOR INTRODUCTION

- a. [2022-0048](#) Introduction of an Ordinance amending Chapter 16, Municipal Court, Article 1, In General, Section 6, Municipal Court Administrative Agency, of the Code of Ordinances of the City of Huntsville, Alabama.
Ordinance No. 22-36
Sponsors: Municipal Court
Attachments: [Amending Municipal Court Code of Ords.docx](#)
- b. [2022-0049](#) Introduction of an ordinance annexing 3.58 acres of land lying on the south side of Cap Adkins Road and east of Norton Road.
Ordinance No. 22-37
Sponsors: Planning
Attachments: [Cap Adkins 2 Annexation](#)
- c. [2022-0050](#) Introduction of an ordinance annexing 2.22 acres of land lying on the south side of Old Hwy 20 and east of Greenbrier Pkwy.
Ordinance No. 22-38
Sponsors: Planning
Attachments: [Ramos Annexation](#)
- d. [2022-0051](#) Introduction of an ordinance to amend Ordinance No. 89-79, Classification and Salary Plan Ordinance.
Ordinance No. 22-39
Sponsors: Human Resources
Attachments: [Class Salary Plan No. 89-79 1-13-2022.docx](#)

22. SECOND ROSTER PUBLIC COMMENTS

This portion of the meeting is reserved for persons wishing to address the Council on matters relating to City business whether or not such items are on the meeting agenda. You may sign up to speak on the Second Public Comments Roster prior to or during the meeting. When called, approach the microphone and state your name, home address and city of residence. Each speaker may address the council for three minutes. Speakers shall refrain from entering into a dialogue with Councilmembers or City staff and from making comments regarding the good name and character of any individual.

23. ADJOURNMENT***Agenda Disclaimer***

City Council agendas are provided for general information purposes only. Any reliance you place on a City Council agenda provided on this website is strictly at your own risk. Hard copies of all City Council agendas and all final attachments are available for review with the official agenda package at the City Clerk-Treasurer's Office at 308 Fountain Circle, Huntsville, AL, after the meeting has concluded.

City Council agendas provided on this website include the text only version of the information associated with the business matters to be brought before for the City Council. Reports and attachments including, but not limited to, pictures, plans, drawings, spreadsheet presentations, financial statements and correspondences are not always included with a City Council agenda on this website.

Changes to a City Council agenda may be necessary prior to the City Council meeting. Such changes may not be included on the City Council agenda on this website. Also, the City Council may elect to amend, delete, add or continue business matters during the City Council meeting.

While every effort is made to keep the information up to date and correct, no representations or warranties of any kind, express or implied, about the completeness, accuracy, reliability, suitability or availability are made with respect to the City Council agendas provided on this website. The City of Huntsville assumes no liability for any errors, omissions, or inaccuracies in the information regardless as to how it was caused; or any missing or incomplete agenda items.